

HOUSE No. 2183

The Commonwealth of Massachusetts

PRESENTED BY:

Erika Uytterhoeven

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ban captive audience meetings.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>1/16/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/11/2025</i>
<i>Carmin Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>2/19/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/30/2025</i>

HOUSE No. 2183

By Representative Uytterhoeven of Somerville, a petition (accompanied by bill, House, No. 2183) of Erika Uytterhoeven, Jason M. Lewis and Carmine Lawrence Gentile for legislation to ban captive audience and employer sponsored meetings. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ban captive audience meetings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 150A of the General Laws is hereby amended by adding the following section:-

2 Section 13. (a) For the purposes of this section, the following words shall, unless the
3 context clearly requires otherwise, have the following meanings:

4 “Political matters”, matters relating to elections for political office, political parties,
5 proposals to change legislation, proposals to change regulation and the decision to join or
6 support any political party or political, civic, community, fraternal or labor organization.

7 “Religious employer”, a church or convention or association of churches or an
8 organization that is operated primarily for religious purposes and that is operated, supervised,
9 controlled or principally supported by a church or convention or association of churches.

10 “Religious matters”, matters relating to religious affiliation and practice and the decision
11 to join or support any religious organization or association.

(b) Except as provided in subsections (c) and (d), any employer who subjects or threatens to subject any employee to discipline or discharge on account of any of the following:

(i) an employee exercising their rights guaranteed by the first amendment to the United States Constitution or article LXXVII of the Massachusetts Constitution; provided such activity does not substantially or materially interfere with the employee's bona fide job performance or the working relationship between the employee and the employer, shall be liable to such employee for damages caused by such discipline or discharge, including punitive damages and for reasonable attorney's fees as part of the costs of any such action for damages;

(ii) an employee's refusal to: (A) attend an employer sponsored meeting with the employer or its agent, representative or designee that the primary purpose is to communicate the employer's opinion concerning religious or political matters, or (B) listen to speech or view communications that the primary purpose is to communicate the employer's opinion concerning religious or political matters, shall be liable to such employee for the full amount of gross loss of wages or compensation, with costs and such reasonable attorney's fees as may be allowed by the court. If the court determines that such action for damages was brought without substantial justification, the court may award costs and reasonable attorney's fees to the employer; or

(iii) an employee or a person acting on behalf of the employee makes a good faith report, orally or in writing, of a violation or a suspected violation of this section.

(c) Nothing in this section shall prohibit:

(i) an employer or its agent, representative or designee from communicating to its employees any information that the employer is required by law to communicate, but only to the extent of such legal requirement;

(ii) an employer or its agent, representative or designee from communicating to its employees any information that is necessary for such employees to perform their job duties;

(iii) an institution of higher education or any agent, representative or designee of such institution from meeting with or participating in any communications with its employees that are part of coursework, any symposia or an academic program at such institution;

(iv) casual conversations between employees or between an employee and an agent, representative or designee of an employer; provided, that participation in such conversations is not required; or

(v) a requirement limited to the employer's managerial and supervisory employees.

(d) Within 30 days after the effective date of this section, an employer subject to this section shall post and keep posted a notice of employee rights under this section where employee notices are customarily placed.

(e) This section shall not apply to a religious employer.